BEFORE THE NATIONAL GREEN TRIBUNAL
PRINCIPAL BENCH AT NEW DELHI, NEW DELHI

Appeal no. 73/2012

In the matter of:

Sudiep Shrivastava
r/o Dharam Prakash Chawl
Mungeli Naka Bilaspur
Chhattisgarh- 495001 ..... Appellant

Versus

1. State of Chhattisgarh
Through the Principal Secretary (Forests)
Government of Chhattisgarh
Raipur

2. Union of India
Through the Secretary
Ministry of Environment and Forests
Government of India
Paryavaran Bhawan, C.G.O Complex
Lodhi Road, New Delhi – 110003

3. M/S Rajasthan Rajya Vidyut Utpadan Nigam Ltd
Vidyut Bhawan
Jyoti Nagar, Janpath
Jaipur- 302005

4. Kente Basan Coilleries co. Ltd
C/O M/S Rajasthan Rajya Vidyut Utpadan Nigam Ltd
Vidyut Bhawan
Jyoti Nagar, Janpath
Jaipur- 302005

.....Respondents

Counsel for appellant:
Mr. Raj Panjwani, sr. advocate along with
Mr. Rahul Choudhary, Mr. Ritwick Dutta
and Srilekha Advocate

Counsel for Respondents:
Mr. Atul Jha, Advocate for respondent no. 1
Ms. Neelam Rathore, Mr. Vikramjeet,
Ms. Syed Amber Advocates for respondent no. 2
Mr. Parag Tripathi sr. Advocate along with
Mr. Kunal Verma Advocates for respondent no. 3
Mr. Pinaki Mishra, sr. Advocate, Mr. Ravi Nair
and Mr. Arjun Khera, Advocates for respondent no. 4

Present:
Hon'ble Mr. Justice Swatanter Kumar (Chairperson)
Hon'ble Mr. U.D. Salvi (Judicial Member)
Hon'ble Dr. D.K. Agrawal (Expert Member)
Hon'ble Prof. A.R. Yousuf (Expert Member)
Hon'ble Dr. R. C. Trivedi (Expert Member)

JUDGMENT

Per U.D. Salvi J.(Judicial Member)

Dated: 24th March, 2014

1. A diversion of 1898.328 hectares of forest land at Parsa East and Kante-Basan captive coal blocks (shortly referred to as PEKB Coal Blocks) situated in Hasdeo-Arand coal fields in Hasdeo-Arand forest- South Sarguja Forest Division, District Sarguja, Chhattisgarh in favour of M/s Rajasthan Rajya Vidyut Utpadan Nigam Ltd (shortly referred to as RVUNL) - the respondent no. 3 herein vide order no. F 5-4/2010/10-2 dated 28th March,2012 passed by the State of Chhattisgarh - the respondent no. 1 herein in pursuance to the approval under section 2 the Forest (conservation) Act 1980 (shortly referred to as FC Act) accorded by

the Central Government the respondent no. 2 herein, finds challenge in the present Appeal.

2. Undisputed facts leading to the present appeal are as under: Tara, Parsa, and PEKB Coal Blocks are part of Hasdeo-Arand Coal Fields of Chhattisgarh, which fall in South Sarguja Forest Division. PEKB Coal Blocks ad measure 2388.525 hectares. Initially, the proposal dated 12th January, 2009 for diversion of 1898.328 hectares of forest land in PEKB Coal Blocks was forwarded by the State Government- State of Chhattisgarh the respondent no. 1 herein to MoEF- the respondent no.2 on 20th April, 2010. The respondent no.3- the project proponent on its own submitted a revised proposal regarding sequential mining of coal in two phases on 02nd March, 2011. Such revised proposal was the subject matter for deliberations before FAC on 10th March, 2011. The FAC appointed a sub-Committee to inspect, enquire into and to submit its report giving its findings in relation to Tara, Parsa and PEKB Coal Blocks. This sub-committee inspected some locations situated within the above coal blocks on 14th and 15th May, 2011 and submitted its observations/findings before the FAC. In its meeting convened on June, 20th and 21st 2011, the FAC considered the sub-Committee's observations/findings and took decision not to recommend the diversion of proposed forest area. In the said meeting, the FAC also dealt with the proposals for diversion of forest land falling in neighbouring coal fields, namely, Tara. On 22nd June, 2011 the final recommendations of the FAC rejecting the proposals for opening of Tara and PEKB Coal Blocks for mining

were placed before the Minister of State, Environment and Forest. The Hon'ble Minister preferred to disagree with the final recommendations of FAC, rejecting the proposal and decided to give stage-I approval in respect of the said proposals for forest clearance on 23rd June, 2011.

3. The Hon'ble Minster of State gave six reasons for his disagreement with the FAC, which are as follows:

(i) The coal blocks are clearly in the Fringe and actually not in the Bio-diversity rich Hasedo Arand forest region (a "No Go" area); and are separated by a well-defined high hilly ridge with drainage into Aten river flowing towards Hariyarpur in the opposite direction making it fall in totally different watershed;

(ii) Substantial changes in the mining plans as originally envisaged i.e. the revised proposal envisaging sequential mining in two phases- each phase of 15 years, firstly covering 762 hectares and in the next phase 1136 hectares, with reclamation of the mined out area to commence from the 3rd year onwards thus making it possible to link renewal for phase-II to performance on reforestation and bio-diversity management in phase-I;

(iii) Wildlife concerns to be taken care of through a well prepared and well executed Wildlife Management Plan under the aegis of independent institutions like the Wildlife Institute of India (WII) with involvement of other independent institutions with expertise on elephant related issues like the Nature Conservation Foundation, Wildlife Trust of India and the Centre for Ecological Studies at the Indian Institute of Science;

(iv) Coal Blocks to be linked to super-critical thermal power generation stations making such linkage as an explicit pre-condition for approval;

(v) Power generation plants of Chhattisgarh and Rajasthan being closely linked to the said coal blocks, the said States have been persistently following up;

(vi) Imperative to sustain the momentum generated in the XI plan in terms of capacity addition in keeping with broader developmental picture and balancing of different objectives and considerations.

4. As a sequel to the Minister's approval the respondent no. 2-MoEF issued stage-II approval dated 15th March 2012 to the said proposal for forest clearance which was followed by the impugned order dated 28th March, 2012 passed by the respondent no. 1-**State of Chhattisgarh.**

5. The appellant took exceptions to the reasons cited to over-rule FAC's recommendations and contended that the Hon'ble Minister's rejection of FAC's recommendations was both legally and factually not tenable. According to the appellant the Hon'ble Minister of State had over-ruled the FAC's recommendations purely on his subjective assessment without there being any basis for it; and the Minister had no power to take a contrary view from the one taken by the expert body- the FAC. In support of this contention the appellant placed reliance on *TWP's* case [*T. 'N. Godavarman Thirumulpad versus Union of India;* (2010)13 SCC 740]. The appellant further submitted that the Hon'ble Minster has

completely ignored the fact of identification of PEKB Blocks as "No Go area" on the basis of the joint studies carried out by Ministry of Coal and MoEF, and the outcome of such studies is material in addressing environmental issues. The appellant further submitted that the joint study for identification of the areas as "Go" and "No Go areas" is not merely an administrative exercise but a requirement in pursuance to the Forest (Conservation) Rules 2003- Rule 7(2)(c) read with entry 8 of Form-A under Appendix to the Rules. The appellant contended that the material information with regard to flora and fauna was concealed by the project proponent while submitting forest clearance proposal and the cost-benefit analysis of the project is flawed. Incidents of man-elephant conflict, the appellant submitted, reveal that the area in question falls in elephant reserve corridor area and the Wildlife Management Plan prepared by the state and looked into by WII in a very casual manner is wholly inadequate and fails to prescribe measures to contain man-elephant conflict. According to the appellant there is enough coal deposit available in the classified "Go areas" i.e. outside "No Go Area" to cater to the coal demand in next 60 years and the Ministry ought to have considered these facts, particularly, when there is no need to allow mining in dense forest and the afforestation would not regenerate natural forest. The appellant pointed out that the Minster had on three previous occasions rejected coal mining projects in Hasdeo-Arand forest area- an un-fragmented forest area and had surprisingly taken a different view contrary to the earlier view in the instant case, particularly in